

24STCV27815 24STCV27815

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-08-25

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Case Number: 24STCV27815 Hearing Date: August 25, 2026 Dept: 617

Dept.

617

Date:

8-25-26

Case

#: 24STCV27815

Trial

Date: 2-22-27

MOTION TO DISMISS

MOVING

PARTY: Defendant, Delaware Covina Grand Apartments, LLC

RESPONDING

PARTY: Unopposed/Plaintiffs, Jonathan Soto and Monique Soto

RELIEF

REQUESTED

Motion

to Dismiss

SUMMARY

OF ACTION

Plaintiffs

Jonathan and Monique Soto sued their landlord, Defendant Delaware Covina Grand Apartments, LLC, alleging uninhabitable conditions in their unit due to fire damage, inadequate heat, lack of water, and roach infestation. Plaintiffs asserted claims for: (1) Breach of Warranty of Habitability; (2) Breach of Covenant of Quiet Enjoyment; (3) Negligence/Negligence Per Se; (4) Intentional Infliction of Emotional Distress; and (5) Negligent Infliction of Emotional Distress. On July 22, 2025, the Court sustained Defendant's demurrer to the complaint with leave to amend. Plaintiffs never filed an amended complaint following the ruling.

RULING: Granted.

Defendant

moves to dismiss the action under Code of Civil Procedure section 581, subdivision (f)(2), based on Plaintiffs' failure to amend their complaint following Defendants' successful demurrer on July 22, 2025. Plaintiffs were granted 30-days' leave to amend but failed to do so. Defendant's motion to dismiss is therefore granted. (Code Civ. Proc., § 581, subd. (f)(2).)

The

dismissal is with prejudice.

Defendant

to give notice.